

Opinion of SOTOMAYOR, J.

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The Court's application of its new standard to Boule's Fourth Amendment claim underscores just how novel that standard is. Even assuming the claim presents a new context, the Court's insistence that national-security concerns bar the claim directly contravenes *Ziglar*. Moreover, the Court's holding that a nonbinding administrative investigation process, internal to the agency and offering no meaningful protection of the constitutional interests at stake, constitutes an alternative remedy that forecloses *Bivens* relief blinks reality.

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The Court acknowledges the force of the Court of Appeals' conclusion that *Bivens* and this case present "‘almost parallel circumstances,’" but it nonetheless concludes that a most unlikely special factor counsels hesitation: the "national-security context." *Ante*, at 495. By the Court's telling, *Hernández* declined to recognize a *Bivens* action "because 'regulating the conduct of agents at the border unquestionably has national security implications,' and the 'risk of undermining border security provides reason to hesitate before extending *Bivens* into this field.'" *Ante*, at 494 (quoting *Hernández*, 589 U.S., at —). That reasoning, the Court concludes, "applies here with full force" because "national security is at issue." *Ante*, at 494.

This is sheer hyperbole. Most obviously, the Court's conclusion that this case, which involves a physical assault by a federal officer against a U. S. citizen on U. S. soil, raises "na-

are not present in this case. See *supra*, at 509, 512–513, 516–517, 518–519; *infra*, at 524–525. The one exception is *Hui v. Castaneda*, 559 U.S. 799, 808 (2010), in which the Court did not have to conduct this analysis because it held the FTCA's comprehensive remedial scheme, which provided both a cause of action and an exclusive damages remedy for the claim at issue, clearly precluded a *Bivens* claim.